

Court No. - 39

Case :- WRIT - C No. - 51712 of 2014

Petitioner :- M/S. Swaroop Pharmaceuticals Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And 2 Ors.

Counsel for Petitioner :- Ansul Kumar Singhal, Vinod Kumar Agrawal

Counsel for Respondent :- C.S.C., Baaleshwar Chaturvedi

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

Connect and list with Writ Petition (C) No. 51884 of 2009.

Heard learned counsel for the petitioner as well as Shri Kamal Kesharwani, holding brief of Sri Baaleshwar Chaturvedi learned counsel for the respondent nos. 1 and 2.

By means of this writ petition, the petitioner has prayed for quashing the undated demand notice issued by the respondent No. 2, for additional security.

Learned counsel for the petitioner submits that additional security has been asked under Para 4.20 of U. P. Electricity Supply Code, 2005.

Learned counsel for the petitioner further submits that similar writ petition has been entertained and interim orders have been passed by this Court.

Reference has been made to the order dated 7.10.2009 in Writ Petition No. 51844 of 2009 (M/s Supreme Ceramics Limited Versus Paschimanchal Vidyut Vitran Nigam Ltd. and others).

Learned counsel for the petitioners also submits that in several matters identical questions are involved.

In view of the interim order as already granted in writ petition No. 51844 of 2009 as referred above it is provided, without prejudice to the right and contention of the parties, until further orders of this Court, the respondents are restrained from demanding additional security from the petitioner.

Order Date :- 24.9.2014

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Court No. - 21

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Counsel for Respondent :- C.S.C., Baaleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

None appears for the petitioner to press the petition even in revised call. Sri Baaleshwar Chaturvedi is present on behalf of the respondent Power Corporation.

The petition is **dismissed** for want of prosecution.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 16.3.2023

Jaideep/-